

Court No. - 21

Case :- WRIT - C No. - 3305 of 2023

Petitioner :- Usman Khan

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Shri Pranjal Mehrotra, learned counsel for the respondent-Corporation seeks time to obtain instruction.

List as fresh on 14th February, 2023.

Order Date :- 31.1.2023

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(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard learned counsel for the petitioner and Shri Pranjal Mehrotra, learned counsel for the Paschimanchal Vidyut Vitran Nigam Limited.

The present petition has been preferred for the following reliefs:-

"i. to issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 27.06.2021 (filed as Annexure No. 1 to this writ petition) issued by the respondent no. 2 for recovery of sum of Rs.1,88,756.00;

ii. to issue a writ, order or direction in the nature of mandamus restraining the respondents from adopting any coercive measures against the petitioner for recovery of aforesaid amount in question pursuant to the impugned demand notice dated 27.06.2021 (filed as Annexure no. 1 to this writ petition.) issued by the respondent no. 2;."

Learned counsel for the petitioner states that the impugned demand notice dated 27.06.2021 has been issued by the Executive Engineer, Electricity Distribution Division - Milak Panvadiya, Paschimanchal Vidyut Vitran Nigam Limited only on the basis of provisional assessment and the liability is fastened on the petitioner.

On the instructions, Shri Pranjal Mehrotra, learned counsel for the power corporation fairly states that impugned demand notice has already been withdrawn on account of giving a fresh opportunity to the petitioner. He submits that in case petitioner moves an appropriate application, definitely the reprieve shall be extended to the petitioner strictly as per the provisions contained under section 6.14 of U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that since the demand notice has already been withdrawn by the

department, the cause for filing this writ petition is no more survives.

In this view of the matter, the present writ petition has become infructuous and is dismissed as such.

Needless to say that it is open to department to proceed in the matter in accordance with law.

Order Date :- 14.2.2023 /Bhanu